Appeal No. 24-1949

UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

JANE ELIZABETH ROBERTS, *et al*,

Plaintiffs-Appellants,

v.

GOVERNOR JAY INSLEE, *et al*,

Defendants-Appellees.

On Appeal from the United States District Court
for the Eastern District of Washington
No. 2:23-cv-00295-TOR
The Honorable Thomas O. Rice

SHRINERS CHILDREN'S DEFENDANTS' ANSWERING BRIEF

Robert Maguire, WSBA #29909
Ross Siler, WSBA #46486
DAVIS WRIGHT TREMAINE LLP
920 Fifth Avenue, Suite 3300
Seattle, WA 98104-1610
Phone: (206) 622-3150
Email: robmaguire@dwt.com
Email: ross.siler@dwt.com

Sarah Ames Benedict, WSBA #51052
Meagan Himes, WSBA #60030
DAVIS WRIGHT TREMAINE LLP
560 SW 10th Avenue, Suite 700
Portland, OR 97205
Phone: (503) 241-2300
Email: sarahbenedict@dwt.com
Email: meaganhimes@dwt.com

FED. R. APP. P. RULE 26.1
CORPORATE DISCLOSURE STATEMENT

Pursuant to Rule 26.1 of the Federal Rules of Appellate Procedure, the undersigned counsel for Defendants-Appellees states that Shriners Hospitals for Children is a non-profit corporation with no parent corporation. Shriners Hospitals for Children – Spokane is a non-profit corporation whose parent corporation is Shriners Hospitals for Children. No publicly held corporation owns 10 percent or more of stock of either Shriners Hospitals for Children or Shriners Hospitals for Children – Spokane.

Dated: August 14, 2024

DAVIS WRIGHT TREMAINE LLP
Attorneys for Defendants – Appellees Shriners Hospitals for Children, Shriners Hospitals for Children – Spokane, Beverly Bokovitz, Frances Farley, Jerry Gantt, John McCabe, Phillip Grady, and Peter Brewer

By */s/ Ross Siler*
Robert Maguire, WSBA #29909
Ross Siler, WSBA #46486
920 Fifth Avenue, Suite 3300
Seattle, WA 98104-1610
Phone: (206) 622-3150
Email: robmaguire@dwt.com
Email: ross.siler@dwt.com

Sarah Ames Benedict, WSBA #51052
Meagan Himes, WSBA #60030
560 SW 10th Avenue, Suite 700
Portland, OR 97205
Phone: (503) 241-2300
Email: sarahbenedict@dwt.com
Email: meaganhimes@dwt.com

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I. INTRODUCTION

Shriners Hospitals for Children instituted a COVID vaccination requirement for employees at its Spokane hospital to comply with Washington Governor Jay Inslee's August 9, 2021 proclamation requiring vaccination for health care workers in the state. Shriners Children's intended its policy to protect its pediatric patients, their families, employees, and others from spreading COVID at a time of surging infections due to the highly contagious Delta variant. Moreover, at the time, Shriners Children's youngest pediatric patients could not yet receive a COVID vaccine. The U.S. Food & Drug Administration did not authorize a vaccine for emergency use for children age 5 to 11 until October 29, 2021.

As the U.S. Supreme Court has held, "[v]accination requirements are a common feature of the provision of healthcare in America" and "ensuring that providers take steps to avoid transmitting a dangerous virus to their patients is consistent with the fundamental principle of the medical profession: first, do no harm." *Biden v. Missouri*, 595 U.S. 87, 93-95 (2022) (concluding Secretary of Health & Human Services did not exceed statutory authority with November 2021 COVID vaccination mandate for healthcare workers at facilities receiving Medicare and Medicaid funding). "It would be the 'very opposite of efficient and effective administration for a facility that is supposed to make people well to make them sick with COVID-19.'" *Id.* at 93 (quoting *Florida v. Dep't of Health &*

Human Servs., 19 F.4th 1271, 1288 (11th Cir. 2021)). Shriners Children's policy was consistent with these principles.

The district court dismissed Plaintiffs' challenge to Shriners Children's policy with prejudice and this Court should affirm for two primary reasons:

First, the district court correctly recognized that Plaintiffs could not assert claims under 42 U.S.C. § 1983 ("Section 1983") against Shriners Children's or its officials as a private, non-profit hospital. As the court concluded, "[r]elevant authority instructs that a private employer's compliance with a government mandate does not constitute state action." 1-ER-0040 (citing *Sutton v. Providence St. Joseph Med. Ctr.*, 192 F.3d 826, 839 (9th Cir. 1999)). The Shriners Children's Defendants are not state actors under any of the four tests proffered by Plaintiffs, and Plaintiffs' misguided attempt to recharacterize the state action at issue as Shriners Children's administration of a COVID vaccination program (as opposed to Shriners Children's employee policy) only further dooms their claims.

Second, even if the Shriners Children's Defendants were state actors, Plaintiffs' claims still fail. The district court correctly concluded that Pfizer-BioNTech's FDA-approved and emergency use vaccines were identical and therefore Plaintiffs were not required to receive an "experimental" or "investigational" vaccine to comply with Shriners Children's policy. Further, this Court and others nationally have nearly uniformly rejected constitutional

challenges to COVID vaccination requirements. *See Kheriaty v. Regents of the Univ. of Calif.*, 2022 WL 17175070, at *1 (9th Cir. Nov. 23, 2022) ("Kheriaty fails to offer any appropriate historical example to establish a 'fundamental right' to be free from a vaccine mandate at a workplace.").

The U.S. Supreme Court also recently denied certiorari for a Third Circuit ruling affirming dismissal of a challenge to Rutgers' student COVID vaccination policy. *Children's Health Def. v. Rutgers*, --- S. Ct. ----, 2024 WL 3089572 (U.S. June 24, 2024). The Third Circuit in its ruling concluded that "there is no unqualified right to decide whether to 'accept or refuse' an [emergency use authorized] product without consequence" and "there is no fundamental right to refuse vaccination." 93 F.4th 66, 76-78 (3d Cir. 2024) (concluding that Rutgers' policy satisfied rational basis review). Plaintiffs raise the same constitutional challenges here and dismissal of their claims is similarly warranted.

II. JURISDICTIONAL STATEMENT

The Shriners Children's Defendants agree that the district court's March 18, 2024 judgment is final and this Court has appellate jurisdiction under 28 U.S.C. § 1291. Appellants' Opening Brief (Dkt. 13) ("Op. Br.") at 5; 1-ER-0002. The district court exercised its original, federal question jurisdiction pursuant to 28 U.S.C. § 1331 with respect to Plaintiffs' six Section 1983 claims and a seventh claim regarding an implied private right of action under 21 U.S.C. § 360bbb-3. 3-

ER-0539-552, 556. The district court exercised supplemental jurisdiction pursuant to 28 U.S.C. § 1367(a) with respect to Plaintiffs' three additional state law claims (breach of contract, unspecified Washington State common law employment torts, and outrage). 3-ER-0552-556.

III. COUNTERSTATEMENT OF ISSUES

1. Did the district court correctly conclude that the Shriners Children's Defendants were not state actors subject to Section 1983 claims in dismissing Plaintiffs' claims? ***Yes***, the Shriners Children's Defendants (a private, non-profit hospital and its officials) are not state actors and the employee vaccination requirement they instituted to comply with Governor Inslee's proclamation does not constitute state action under any of the four tests (public function, state compulsion, symbiotic relationship, and state-enforced custom) that Plaintiffs assert.

2. Even if the Shriners Children's Defendants were state actors, was dismissal of Plaintiffs' claims still proper? ***Yes***, for multiple reasons, as Plaintiffs were not required to receive an "experimental" or "investigational" vaccine to comply with Shriners Children's policy; the EUA statute (21 U.S.C. § 360bbb-3) and PREP Act (42 U.S.C. § 247d-6d) provide no basis for Plaintiffs' claims; Plaintiffs' constitutional claims fail as no fundamental right to refuse vaccination

exists and Shriners Children's policy satisfies rational basis review; and Plaintiffs do not meaningfully challenge the dismissal of their state law claims.

IV. COUNTERSTATEMENT OF THE CASE

In August and September 2021, Shriners Hospitals for Children instituted local and then system-wide COVID vaccination policies for employees at its pediatric hospitals. 3-ER-0601-610. Shriners Children's expressly intended its system-wide policy "[t]o help protect Shriners Hospitals for Children (SHC) pediatric patients from COVID-19 disease" and "to help prevent the unnecessary spread of the COVID-19 virus between employees, non-employees, patients and families." 3-ER-0601. At the time of Shriners Children's policies, the Delta variant was surging nationally and Shriners Children's pediatric patients younger than 12 were unable to receive any COVID vaccination. 3-ER-0413-414.

The Shriners Children's Defendants and Governor Inslee. The defendants in this case are Shriners Hospitals for Children and Shriners Hospitals for Children - Spokane, private non-profit corporations that operate Shriners Children's Spokane, a 30-bed hospital that treats thousands of pediatric patients annually. 3-ER-0407. The individual defendants (Beverly Bokovitz, Dr. Frances Farley, Jerry Gantt, John McCabe, and Phillip Grady) are national Shriners Children's officials, along with Peter Brewer, administrator of Shriners Children's

Spokane. 3-ER-0408-409. Plaintiffs also named Washington Governor Jay Inslee as an individual defendant. 3-ER-0409.

Plaintiffs Refused to Comply with Shriners Children's Policy. Plaintiffs are 12 former employees of Shriners Children's Spokane who were discharged for failing to comply with Shriners Children's policy after they refused to receive a COVID vaccine. 3-ER-0408; *see also* Op. Br. at 11 ("Appellants exercised their statutory entitlement and rights to refuse the products."). Throughout their Complaint, Plaintiffs acknowledge that their claims fail to the extent Shriners Children's policy required them to receive an FDA-approved vaccine. *See, e.g.*, 3-ER-0463 ("Plaintiffs make no assertions regarding whether it is lawful for a public or private entity to mandate a ***licensed*** vaccine.") (emphasis in original); 3-ER-0506 (same).

Further, in their opening brief, Plaintiffs concede that the Pfizer-BioNTech emergency use (EUA) vaccine and the FDA-approved Comirnaty vaccine "share formulation" and are "interchangeable" for "medical use." Op. Br. at 20; *id.* at 6, 13, 14, 39 (repeatedly acknowledging the EUA and FDA-approved vaccines are identical "on paper," as well as being "medically interchangeable").

EUA Authorization for Pfizer-BioNTech Vaccine. In December 2020, the FDA issued the first emergency use authorization for a COVID vaccine, authorizing Pfizer-BioNTech's vaccine to be distributed in the U.S. for use by

individuals 16 and older. 3-ER-0409.[1] In announcing emergency use authorization of the Pfizer-BioNTech vaccine, the FDA reported that based on an international study of over 37,000 participants, the vaccine was 95 percent effective in preventing COVID. *Id.* The FDA subsequently issued emergency use authorization for vaccines developed by Moderna and Janssen in December 2020 and February 2021, respectively. 3-ER-0409-410.

Governor Inslee Issues Proclamation 21-14. Amid a surge of the highly contagious Delta variant in summer 2021, Governor Inslee issued Proclamation 21-14[2] on August 9, 2021. 3-ER-0410. The Proclamation required all "Health Care Providers" in the state to be fully vaccinated by October 18, 2021 (subject to any disability-related or religious accommodations). *Id.* A "Health Care Provider" was defined to include "[w]orkers in any Health Care Setting," with "Health Care Settings" expressly including "[a]cute care facilities, including, but not limited to, hospitals," such as Shriners Children's Spokane. *Id.* Governor Inslee expressed that the Proclamation was intended to protect "vulnerable populations," including

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[1] https://www.fda.gov/news-events/press-announcements/fda-takes-key-action-fight-against-covid-19-issuing-emergency-use-authorization-first-covid-19.

Plaintiffs did not challenge the district court taking judicial notice of the FDA and other government records cited by the Shriners Children's Defendants in support of their motion to dismiss. 1-ER-0030-32.

[2] https://governor.wa.gov/sites/default/files/proclamations/21-14%20-%20COVID-19%20Vax%20Washington%20%28tmp%29.pdf

"persons in health care facilities" and to "protect our health … care systems themselves." 3-ER-0410-411, 579. And Governor Inslee emphasized that the COVID vaccines "are effective in reducing infection and serious disease" and "widespread vaccination is the primary means we have as a state to protect everyone, including … youth who are not eligible to receive a vaccine … and vulnerable people in health care facilities," such as Shriners Children's pediatric patients. 3-ER-0580.

Shriners Children's Notified Staff of Governor Inslee's Proclamation. The same day it was issued, Shriners Children's notified all staff at its Spokane hospital of Proclamation 21-14 and vaccination requirement. Kristin Monasmith, a communications director at the Spokane hospital, wrote: "Coming from the Governor and the state of Washington, the Spokane Hospital is required to abide by the state mandate and follow applicable laws. Shriners Hospitals for Children does not have the ability to adapt or vary from the statements within the proclamation." 3-ER-0411, 608. Employees who refused to be vaccinated in accordance with the state mandate faced potential termination. 3-ER-0411.

The FDA Provides Full Approval to Pfizer-BioNTech's Vaccine. Two weeks after Governor Inslee issued Proclamation 21-14, the FDA on August 23, 2021, provided full approval to Pfizer-BioNTech's COVID vaccine for use by

individuals 16 and older. 3-ER-0411.[3] The Pfizer-BioNTech vaccine was to be marketed by the brand name Comirnaty going forward. *Id.* ("The vaccine has been known as the Pfizer-BioNTech COVID-19 Vaccine, and will now be marketed as Comirnaty."). In announcing approval of the vaccine, the FDA noted that Comirnaty "has the same formulation as the EUA vaccine" (with both being administered in a two-dose series three weeks apart) and that clinical trial evidence involving approximately 40,000 participants supported that the vaccine was 91 percent effective in preventing COVID. 3-ER-0411-412.

Along with approving Comirnaty, the FDA also reissued the EUA for the Pfizer-BioNTech vaccine for use by individuals 12 to 15 and as a third dose for certain immunocompromised individuals. *Id.* In reissuing the EUA, the FDA clarified that "[t]he licensed vaccine [Comirnaty] has the same formulation as the EUA-authorized vaccine and the products can be used interchangeably to provide the vaccination series without presenting any safety or effectiveness concerns. The products are legally distinct with certain differences that do not impact safety or effectiveness." 3-ER-0383. The FDA added that "[a]lthough Comirnaty … is approved to prevent COVID-19 in individuals 16 years of age and older, there is not sufficient approved vaccine available for distribution to this population in its

[3] https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine

entirety at the time of reissuance of this EUA. Additionally, there are no products that are approved to prevent COVID-19 in individuals age 12 through 15, or that are approved to provide an additional dose to the immunocompromised population described in this EUA." 3-ER-0386.

The Marks Declaration. Plaintiffs refer to the Declaration of Peter Marks, the Director of the Center for Biologics Evaluation and Research for the FDA, submitted in January 2022 in the case *Coker v. Austin*, Case No. 3:21-cv-01211-AW-HTC (N.D. Fla.). 3-ER-00395-399.[4] But Dr. Marks emphasized in his declaration that the FDA made clear that Comirnaty and the Pfizer-BioNTech EUA vaccine were "interchangeabl[e]" and shared "formulation" so that "pharmacies and other healthcare practitioners could provide the vaccination series to recipients using Pfizer-BioNTech, Comirnaty, or both … since the formulation was the same and both products are made by the same manufacturer under current good manufacturing practice requirements." SER-007-8.

While Plaintiffs repeatedly cite a labeling distinction between Comirnaty and the EUA vaccine in support of their arguments, *see* Op. Br. at 5, 12, 20, 39, Dr.

[4] Even though they filed the Marks Declaration in full with the district court in opposing the Shriners Children's Defendants' motion to dismiss, Plaintiffs submit only what they characterize as the "Pertinent Pages" of the Marks Declaration with their excerpts of record on appeal. Shriners Children's has submitted the Marks Declaration in full as supplemental excerpts of record as the additional pages discuss labeling requirements for Comirnaty and the EUA vaccine.

Marks added that the FDA was "exercising its enforcement discretion with respect to certain labeling requirements, in that FDA is not taking enforcement with respect to vials that bear the EUA label"—the distinction on which Plaintiffs so extensively rely. SER-009. The FDA "consider[ed] these lots to be manufactured in compliance with the BLA and ***they are not subject to the EUA requirements when used for the approved indication***." SER-009-10 (emphasis added). The FDA further distributed "unified Fact Sheets" for Comirnaty and the Pfizer-BioNTech EUA vaccine since they would be used interchangeably with recipients. SER-010.

Dr. Marks additionally cited clinical studies in support of approving Comirnaty that the Pfizer-BioNTech EUA vaccine was 91.1 percent effective in preventing COVID infection for individuals 16 and older and between 95 and 100 percent effective for the avoidance of severe infection. *Id.* He concluded that "[s]afe and effective vaccines are currently the most powerful tool we have against the pandemic and have been estimated to have already saved hundreds of thousands of lives." SER-012.

Shriners Children's System-Wide Policy. With the FDA fully approving Comirnaty, Shriners Children's on September 14, 2021, instituted a system-wide employee COVID vaccination requirement. 3-ER-0412-413, 601-607. Shriners Children's policy required all employees to receive their first vaccine shot by

October 11 and to be fully vaccinated by December 6, 2021, or face potential termination. 3-ER-0606-607. The policy permitted employees to seek medical or religious exceptions. 3-ER-0603-604. It also permitted employees to receive vaccination from Shriners Children's or from their primary care provider or another health facility or vaccination service. 3-ER-0604. Shriners Children's expressly stated its purpose with the policy was

> To help protect Shriners Hospitals for Children (SHC) pediatric patients from COVID-19 disease. To help protect employed staff, non-employees, volunteers, patients and families at SHC hospitals/facilities from COVID-19 disease and to help prevent the unnecessary spread of the COVID-19 virus between employees, non-employees, patients and families.

3-ER-0601.

Most critically, no COVID vaccine—not even one authorized for emergency use—was available for Shriners Children's patients between 5 and 11 until October 29, 2021. 3-ER-0413.[5] Data additionally reflected that COVID cases in children nationally had increased to over 250,000 for the week of September 9, 2021, at the height of the Delta variant surge, and was the highest number of cases to that point during the pandemic. 3-ER-0414.

[5] https://www.fda.gov/news-events/press-announcements/fda-authorizes-pfizer-biontech-covid-19-vaccine-emergency-use-children-5-through-11-years-age

As the district court recognized: "In the context of challenges brought by former healthcare workers employed by a children's hospital, the rationale behind Proclamation 21-14 is even more acute." 1-ER-0016. Plaintiffs, however, suggest they were subject to "human rights abuses" due to Shriners Children's policy, that Shriners Children's sought to conduct "research activities" on them, that Governor Inslee's mandate was intended to force healthcare workers to receive COVID vaccines "out of fear" to generate "higher revenues to the state from the federal government," and that COVID vaccines were "unsafe and ineffective investigational products," despite the FDA's reported studies to the contrary. Op. Br. at 7, 11, 27, 33. None of these allegations are supported.

The District Court Dismissed Plaintiffs' Claims With Prejudice. The district court dismissed all claims against the Shriners Children's Defendants with prejudice in a February 8, 2024 order. 1-ER-0027-53. In its order, the district court in particular referenced "the presumption that private parties are not state actors" subject to Section 1983 claims and that "[r]elevant authority instructs that a private employer's compliance with a government mandate does not constitute state action." 1-ER-0037, 40; *see also* 1-ER-0046 ("As stated, a plaintiff cannot successfully establish state action where the defendant was merely complying with a generally applicable state law.").

The district court additionally recognized that "because the emergency authorized Pfizer-BioNTech vaccine and the FDA-approved Comirnaty vaccine were 'physically, chemically, and biologically identical,' the Pfizer-BioNTech vaccine was effectively FDA approved and was not an 'experimental' drug under the EUA statute or PREP Act." 1-ER-0041 (citing *Johnson v. Brown*, 567 F. Supp. 3d 1230, 1247 (D. Or. 2021) and *Curtis v. Inslee*, --- F. Supp. 3d ----, 2023 WL 8828753, at *2 (W.D. Wash. Dec. 21, 2023)). And the district court further "agree[d] with the weight of authority holding that the EUA statute does not contain an implied right of action." 1-ER-0048.

Following the district court's dismissal of Plaintiffs' claims against Governor Inslee and Plaintiffs' motion to file an amended complaint, 1-ER-0026, Plaintiffs appealed, 3-ER-0611-613.

V. SUMMARY OF THE ARGUMENT

This Court should affirm the district court's dismissal of Plaintiffs' claims against the Shriners Children's Defendants, who are not state actors and accordingly not subject to Plaintiffs' Section 1983 claims. The Shriners Children's Defendants' compliance with Governor Inslee's proclamation does not make them state actors, as the district court correctly concluded. *See Sutton*, 192 F.3d at 839 ("[W]e do not believe that … government compulsion in the form of a general statute, without more, is sufficient to transform every private entity that follows the

statute into a governmental actor."). The district court correctly examined the conduct at issue—Shriners Children's implementation of its COVID vaccination policy and subsequent discharge of Plaintiffs for failing to comply with the policy, as opposed to Shriners Children's administration of a COVID vaccination program pursuant to its CDC Provider Agreement—and found no state action under each of the four tests that Plaintiffs asserted.

Even if the Shriners Children's Defendants were state actors, dismissal of Plaintiffs' claims is still proper. As the district court correctly recognized, the FDA provided full approval for Pfizer-BioNTech's vaccine for individuals 16 and older in August 2021. This fully approved vaccine (Comirnaty) was identical to Pfizer-BioNTech's vaccine previously authorized for emergency use and the FDA intended the two vaccines to be used "interchangeably." Accordingly, Plaintiffs could have complied with Shriners Children's policy by receiving a fully approved FDA vaccine, not an "experimental" or "investigational" vaccine as they claim. The FDA further exercised its discretion with respect to labeling requirements for the Pfizer-BioNTech vaccine, contrary to the labeling distinction Plaintiffs attempt to draw between Comirnaty and the EUA vaccine.

This Court and courts nationally have nearly uniformly rejected constitutional challenges to COVID vaccination requirements similar to those Plaintiffs assert. *See Kheriaty*, 2022 WL 17175070, at *1-2 (concluding that

workplace vaccination requirements do not implicate fundamental rights and University of California's employee policy satisfied rational basis review); *We The Patriots USA, Inc. v. Hochul*, 17 F.4th 266, 293 (2d Cir. 2021) ("Both this Court and the Supreme Court have consistently recognized that the Constitution embodies no fundamental right that in and of itself would render vaccine requirements imposed in the public interest, in the face of a public health emergency, unconstitutional."). The Third Circuit further affirmed dismissal of a challenge to Rutgers' student COVID vaccination requirement on similar equal protection, due process, and unconstitutional conditions grounds as here, *Rutgers*, 93 F.4th at 78-88, and the U.S. Supreme Court denied certiorari of this ruling, 2024 WL 3089572.

Plaintiffs do not meaningfully challenge the district court's dismissal of their state law contract, employment, and outrage claims against the Shriners Children's Defendants, nor the district court's denial of their motion for leave to amend their complaint. This Court should affirm dismissal of all claims.

VI. STANDARD OF REVIEW

The Court reviews *de novo* the district court's dismissal of claims pursuant to Rule 12(b)(6). *Bafford v. Northrop Grumman Corp.*, 994 F.3d 1020, 1025 (9th Cir. 2021). "On review, '[w]e accept all factual allegations in the complaint as true and construe the pleadings in the light most favorable to the nonmoving party.'"

Id. (citation omitted). "The court need not, however, accept as true allegations that contradict matters properly subject to judicial notice or by exhibit," *Sprewell v. Golden State Warriors*, 266 F.3d 979, 988 (9th Cir. 2001), nor need it "accept as true legal conclusions contained in the complaint," *Saldana v. Occidental Petroleum Corp.*, 774 F.3d 544, 551 (9th Cir. 2014). The Court also is not required "to accept as true allegations that are merely conclusory, unwarranted deductions of fact, or unreasonable inferences." *Sprewell,* 266 F.3d at 988.

The Court also reviews *de novo* the district court's conclusion that the Shriners Children's Defendants are not state actors subject to Section 1983 claims. *Lee v. Katz*, 276 F.3d 550, 553 (9th Cir. 2002).

Plaintiffs' constitutional challenges to Shriners Children's policy are subject to rational basis review, as this Court has recognized that there is no "fundamental right" to "be free from a vaccine mandate at a workplace." *Kheriaty*, 2022 WL 17175070, at *1-2 ("Because he has not asserted a fundamental right, rational basis review should apply."); *see also Rutgers*, 93 F.4th at 78, 81, 88 (applying rational basis review in absence of fundamental right implicated by COVID vaccination challenge); *We The Patriots*, 17 F.4th at 290-95 (applying rational basis review to challenge to state COVID vaccination requirement for health care workers); *Clark v. Jackson*, 2023 WL 2787325, at *5-7 (6th Cir. Apr. 5, 2023) (applying rational basis review to nurse's challenge to health system's COVID vaccination

requirement for employees); *Klaassen v. Trs. of Ind. Univ.*, 7 F.4th 592, 593 (7th Cir. 2021) (applying rational basis review to challenge to University of Indiana's student COVID vaccination requirement).

VII. ARGUMENT

A. The District Court Correctly Dismissed Plaintiffs' Section 1983 Claims Because the Shriners Children's Defendants Are Not State Actors.

The district court correctly construed Plaintiffs' allegations in the light most favorable to them by examining the Shriners Children's Defendants' institution and enforcement of their COVID vaccination policy for their hospital employees as the putative state action at issue. 1-ER-0037-38. The court then examined that conduct under each of the four state action tests proffered by Plaintiffs, finding no state action by the Shriners Children's Defendants. For the reasons below, this Court should affirm the district court's ruling. Even if it finds state action, this Court should alternatively affirm dismissal on behalf of the individually named Shriners Children's Defendants on qualified immunity grounds.

1. The District Court Correctly Construed the State Action At Issue as Shriners Children's COVID Vaccination Policy and Resulting Employment Action.

As a threshold issue, the district court correctly construed Plaintiffs' allegations in the light most favorable to them by identifying the alleged conduct subject to the state action tests as Shriners Children's adoption of its COVID

vaccination policy and its application to Plaintiffs as employees. 1-ER-0037-38; *Bafford*, 994 F.3d at 1025. Otherwise, to the extent that Plaintiffs' claims were based on Shriners Children's administration of a COVID vaccination program for the public, the district court recognized that such claims were too "attenuated from the specific conduct at issue, *i.e.*, whether Plaintiffs were illegally terminated for refusing a vaccination" to be actionable. 1-ER-0040.

Plaintiffs appeal from this characterization, arguing now that the alleged state action "does not derive from the employment relationship between Appellants and Shriners or any duty as an employer[,]" but rather "derives from Shriners contractually agreeing to collaborate with the federal and state governments to distribute federally funded COVID-19 EUA/PREP Act investigational drugs, something Shriners could never legally do outside of such parameters, thereby demonstrating state action." Op. Br. at 29; *see also id.* at 37 (arguing that "[w]hether Appellants accepted or refused the injection is not material" to question of state action); *but see id.* at 38 ("The district court erred in finding that Shriners was not a state actor … and not acting under color of law when penalizing employees for exercising their statutory entitlement to refuse the injection of the investigational drugs.").

Such a construction—focusing on Shriners Children's administration of its vaccination program—favors Plaintiffs even less than the construction adopted by

the district court, because it "overlooks the essential point that the state must be involved not simply with some activity of the institution alleged to have inflicted injury upon a plaintiff but *with the activity that caused the injury*. Putting the point another way, the state action, not the private action, must be the subject of complaint." *Jackson v. Am. Bar Ass'n*, 538 F.2d 829, 832-33 (9th Cir. 1976) (internal punctuation and citation omitted; emphasis added).

Here, Plaintiffs allege injuries from losing their employment. 3-ER-0556-557 (alleging damages to include "front and back pay; loss of benefits; loss of accumulated sick pay; loss of retirement accounts; lost earnings on retirement funds; vacation time, compensatory time, and paid time off"). It is simply not plausible to construe even Plaintiffs' most generalized damages allegations—for "emotional distress" and "loss of enjoyment of life," 3-ER-0557—as resulting from the existence of the CDC Provider Agreement between Shriners Children's and the federal government to administer a public vaccination program. *See Ashcroft v. Iqbal*, 556 U.S. 662, 663 (2009) ("A claim has facial plausibility when the pleaded factual content allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.") (internal citation omitted).

If the district court were to have construed Plaintiffs' allegations as implying state action from Shriners Children's Provider Agreement with the CDC and administration of a COVID vaccination program, that conduct bears no plausible

causal relationship to Plaintiffs' injuries, leaving Plaintiffs without standing to bring their claims irrespective of any state action. *Cf. Pearson v. Shriners Hosps. for Child.*, --- F. Supp. 3d ----, 2024 WL 3022397, at *3-4 (S.D. Tex. June 7, 2024) ("There is little doubt that Shriners' decision to terminate the plaintiffs' employment is the specific conduct at issue. The core dispute, however, is the link between Shriners' termination decision and Shriners' participation in the CDC's COVID-19 Vaccination Program. … Shriners' COVID-19 Policy was a private term of employment, distinct from any obligation it may have had pursuant to its agreement with the CDC."); *see also Curtis v. PeaceHealth*, 2024 WL 248719, at *5 (W.D. Wash. Jan. 23, 2024) (noting that plaintiffs "frequently conflate PeaceHealth's obligations as an entity that administers vaccines with PeaceHealth's actions as an employer" and plaintiffs "fail to allege that they were injured in any manner by PeaceHealth in its role as an entity that administered COVID-19 vaccines.").

Because Plaintiffs' now-proffered construction of their own allegations is less favorable to them than the district court's, the court did not err when it construed the putative state action at issue as Shriners Children's adoption of its COVID vaccination policy for employees. 1-ER-0038; *Iqbal*, 556 U.S. at 663. For the reasons below, that conduct does not amount to state action, and the district court's ruling should be affirmed.

2. The District Court Properly Applied the State Action Tests and Determined that the Shriners Children's Defendants Are Not State Actors.

To determine whether a private party has engaged in state action for purposes of a Section 1983 claim, the fundamental inquiry is whether "the conduct allegedly causing the deprivation of a federal right [is] fairly attributable to the State." *Lugar v. Edmonson Oil Co.*, 457 U.S. 922, 937 (1982). Courts use a two-pronged test to make this determination, asking first whether "the deprivation [is] caused by the exercise of some right or privilege created by the State or by a rule of conduct imposed by the state or by a person for whom the State is responsible," and second, whether "the party charged with the deprivation must be a person who may fairly be said to be a state actor." *Id.*

The district court correctly identified the parties' dispute over the second prong: "whether the Shriners Defendants, as private parties, may be fairly characterized as state actors." 1-ER-0036 (quoting *Collins v. Womancare*, 878 F.2d 1145, 1151 (9th Cir. 1989)) ("The state actor requirement ensures that not all private parties face constitutional litigation whenever they seek to rely on some state rule governing their interactions with the community surrounding them.").[6]

[6] The district court's focus on the second prong of the *Lugar* test does not, as Plaintiffs posit, indicate that "[t]he district court affirmed its belief that a statutory right had been violated[.]" Op. Br. at 28. Rather, the district court was silent on the issue, which could require remand if the issue becomes dispositive here. *See*

Plaintiffs disagree with the district court's ruling but provide no authority or argument to demonstrate any error. *See* Op. Br. at 28-38. They do not challenge the presumption the district court cited that "private parties are not state actors." 1-ER-0037 (citing *Sutton*, 192 F.3d at 835). Under each of the four tests Plaintiffs assert, the Shriners Children's Defendants' conduct does not amount to state action. The district court's ruling accordingly should be affirmed.

a. Public Function Test

Plaintiffs first allege that the public function test supports their claims. 3-ER-0527 (n.94). The "public function test" states that "when private individuals or groups are endowed by the State with powers or functions governmental in nature, they become agencies or instrumentalities of the State and subject to its constitutional limitations." *Evans v. Newton*, 382 U.S. 296, 299 (1966). To satisfy that test, the function at issue must be both traditionally and exclusively governmental. *Rendell-Baker v. Kohn*, 457 U.S. 830, 842 (1982).

The district court correctly concluded that Plaintiffs did not plausibly plead "that Defendants' issuance of the employee vaccination policy or administration of vaccines to the public gave them any power over medical licensing, emergency declaration management, or the rules and conditions for the distribution of the

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RTC Transp., Inc. v. Conagra Poultry Co., 971 F.2d 368, 375 (9th Cir. 1992).

federal government's COVID-19 property." 1-ER-0040. Plaintiffs argue that the court erred in its ruling "because it did not consider that Governor Inslee gave Shriners the authority of the state under the emergency CDC Program to conduct part of the state's emergency affairs on its behalf," which Plaintiffs contend was error because "[f]actually, the district court not only refused to accept Appellants' allegations as true relating to the CDC Program, it simply refused to acknowledge that the Appellants even made the allegations." Op. Br. at 37.

But the bald allegation that Governor Inslee "gave Shriners the authority of the state" is a legal conclusion to which neither the district court nor this Court need give any deference. *Saldana*, 774 F.3d at 551. The district court did not err in determining that Plaintiffs pleaded no *facts* to plausibly allege that the Shriners Children's Defendants had any power over medical licensing or the rules and conditions for the government's property, 1-ER-0040, and Plaintiffs point to none, *see generally* Op. Br.; *cf. Curtis*, 2024 WL 248719, at *6 ("Plaintiffs have failed to demonstrate that PeaceHealth's enforcement of its Policy was a public function … because they did not demonstrate that the function at issue was both traditionally and exclusively governmental.") (internal citation and punctuation omitted).

b. State Compulsion Test

Plaintiffs alternatively allege state conduct under the "state compulsion test." 3-ER-0527 (n.95). Under that test, private action may be deemed state action

when the government has "exercised coercive power or has provided such significant encouragement, either overt or covert, that the [private actor's] choice must in law be deemed to be that of the State." *Blum v. Yaretsky*, 457 U.S. 991, 1004 (1982). But this Court has recognized that "Supreme Court precedent does not suggest that governmental compulsion in the form of a generally applicable law, without more, is sufficient to deem a private entity a governmental actor." *Sutton*, 192 F.3d at 841.

Plaintiffs quote *Blum* and summarily state that "Shriners was clothed with the power of the state to apply penalties to state-licensed healthcare workers when those workers exercised their statutory entitlement to refuse the investigational product[.]" Op. Br. at 35. But as before at the district court, Plaintiffs do not address *Sutton* or its observation that "[t]o accept Plaintiff's argument would be to convert every employer—whether it has one employee or 1,000 employees—into a governmental actor every time it complies with a presumptively valid, generally applicable law[.]" *Sutton*, 192 F.3d at 838; *cf. Curtis*, 2024 WL 248719, at *5 ("The conduct of which Plaintiffs complain was merely PeaceHealth's compliance with a generally applicable law – Gov. Inslee's Proclamation. Accordingly, it did not constitute state action."). The district court did not err in finding no state action under the state compulsion test. 1-ER-0044-47.

c. Symbiotic Relationship Test

Plaintiffs rely on a third test, the "symbiotic relationship test." 3-ER-0527 (n.96). This test inquires "whether the government has so far insinuated itself into a position of interdependence with a private entity that the private entity must be recognized as a joint participant in the challenged activity." *Brunette v. Humane Soc'y of Ventura Cnty.*, 294 F.3d 1205, 1210 (9th Cir. 2002). A private entity may be considered a state actor "only if its particular actions are 'inextricably intertwined' with those of the government," of which "significant financial integration" between the private entity and the state is a hallmark. *Id.* at 1211, 1213; *see also Ponce v. Basketball Fed'n of Puerto Rico*, 760 F.2d 375, 382 (1st Cir. 1985) ("In *Rendell-Baker v. Kohn*, the United States Supreme Court stressed that the key factor in determining the existence of a symbiotic relationship is whether the *state* profited from the discriminatory activity.") (emphasis added, internal citations omitted).

Plaintiffs nowhere allege the conferral of any financial benefit on anyone—either Shriners Children's or the government—sufficient to make the two "inextricably intertwined" for purposes of this test. Although Plaintiffs argue that "the state was financially rewarded by causing other licensed healthcare workers to take the shot out of fear resulting in higher revenues to the state from the federal government," Op. Br. at 33, no support for this statement exists in Plaintiffs'

pleading or anywhere else. The district court did not err in determining that the Shriners Children's Defendants engaged in no state action under this test. 1-ER-0042-44.

d. State-Enforced Custom Test

Finally, Plaintiffs turn to the "state-enforced customs test," 3-ER-0527 (n.97), which requires action under direction of policy or custom having the force of law advanced by the state. *See Adickes v. S.H. Kress & Co.*, 398 U.S. 144, 163-69 (1970). Plaintiffs allege that Shriners Children's participated in *developing* the "state custom" about which Plaintiffs complain. *See* 3-ER-0527 (n.97). A custom *developed* in part by Shriners Children's alleged actions cannot simultaneously have compelled those same actions by "having the force of law." *Adickes*, 398 U.S. at 163. Here too, this theory fails to convert the Shriners Children's Defendants into state actors, and the district court did not err in so concluding. 1-ER-0045-46.

Taken together, the district court did not err when it concluded that "Plaintiffs have failed to demonstrate that Defendants were state actors under any of the four tests." 1-ER-0047. This Court should affirm this holding.

3. Even if Any Individually Named Shriners Children's Official Were a State Actor, They Would Be Entitled to Qualified Immunity.

Even if Plaintiffs established that any Shriners Children's Defendant was a state actor—which they have not—their Section 1983 claims would still fail against the individually named Shriners Children's officials because those individuals would be entitled to qualified immunity. As in *Jones v. County of Los Angeles*, at the time Shriners Children's instituted its COVID vaccination policy, no authority suggested or provided notice that such a requirement would or even could violate federal law. 722 F. App'x 634, 637-38 (9th Cir. 2018) (state employee physician entitled to qualified immunity when no "clearly established case law" would have provided "fair warning" that actions violated federal constitutional law).

Indeed, the U.S. Supreme Court subsequently held that a federal COVID vaccination requirement issued by the Secretary of Health and Human Services for employees at hospitals receiving Medicare and Medicaid funding was "consistent with the fundamental principle of the medical profession" to "first, do no harm." *Biden*, 595 U.S. at 93; *see also Johnson v. Kotek*, 2024 WL 747022, at *3 (9th Cir. Feb. 23, 2024) (concluding former Oregon governor and state health official were entitled to qualified immunity based on Plaintiffs' "[a]t best … debatable" argument challenging COVID vaccination requirement "as reflected by the number of decisions that have rejected Plaintiffs' position"). Without "fair notice" that their conduct could violate federal law (which it did not), the individually named

Shriners Children's Defendants are entitled to qualified immunity with respect to Plaintiffs' Section 1983 claims. If this Court concludes that the Shriners Children's Defendants engaged in state action, it should still affirm the district court's dismissal with respect to the individually named Shriners Children's officials on this alternative ground.

B. Even if the Shriners Children's Defendants are State Actors, Multiple Additional Grounds Support Dismissal of Plaintiffs' Claims.

Even if the Shriners Children's Defendants are considered state actors, and the individual officials are not entitled to qualified immunity, Plaintiffs' claims still should be dismissed for multiple additional reasons.

1. Plaintiffs Were Not Required to Receive an "Experimental" or "Investigational" Vaccine.

Plaintiffs' claims are all seemingly predicated on their contention that they could only comply with Shriners Children's vaccination policy by receiving an EUA vaccine. *See* Op. Br. at 8 (claiming "Appellees … depriv[ed] Appellants of their constitutional rights to refuse investigational drugs and to refuse unwanted medical treatment"), *id.* at 11 (claiming Shriners Children's policy "require[ed] Appellants to inject … investigational products into their bodies"), *id.* at 21 (claiming Appellees' mandates "were not vaccine mandates at all – they were EUA/PREP Act investigational drug mandates"). But the district court correctly rejected Plaintiffs' argument and this predicate for their claims.

The district court did not "judicially create[]" a new drug classification. Op. Br. at 5. Instead, it correctly recognized that the FDA provided full approval for the Pfizer-BioNTech vaccine—previously authorized for emergency use—for use by individuals 16 and older. 1-ER-0030-31, 41. Plaintiffs therefore could have complied with Shriners Children's policy by receiving the FDA-approved Pfizer-BioNTech vaccine, which the FDA, all courts, and even Plaintiffs acknowledge were "medically interchangeable" and "share formulation," whether as the EUA vaccine or FDA-approved Comirnaty. Op. Br. at 14, 20.

The district court correctly concluded that "because the emergency-authorized Pfizer-BioNTech vaccine and the FDA-approved Comirnaty vaccine were 'physically, chemically, and biologically identical,' the Pfizer-BioNTech vaccine was effectively FDA approved and was not an 'experimental' drug under the EUA statute or PREP Act." 1-ER-0041 (citing *Johnson*, 567 F. Supp. 3d at 1247, and *Curtis*, 2023 WL 8828753, at *2). Accordingly, "Plaintiffs' claims that Defendants' vaccination policy was unlawful because an FDA-approved vaccine was unavailable falls short." 1-ER-0041.

The FDA emphasized that Comirnaty and Pfizer-BioNTech's EUA vaccine had the "same formulation" and "can be used interchangeably … to provide the COVID-19 vaccination series." 3-ER-0382. The FDA added that it reissued the EUA for the Pfizer-BioNTech vaccine while providing full approval for the same

vaccine because "there is not sufficient approved vaccine available for distribution to this population"—individuals 16 and older—"in its entirety at [this] time" and because the FDA had still only provided EUA approval of the Pfizer-BioNTech vaccine for individuals age 12 through 15 and as an additional dose for certain immunocompromised individuals. 3-ER-0386.[7]

At least four district courts nationally have agreed that Comirnaty and the EUA vaccine were functionally equivalent following the FDA's approval of Comirnaty. "The vaccines themselves … have the same formulation, are interchangeable, and are identical for safety and effectiveness. Thus, the actual vaccine that is being injected is not materially different, whether it is Comirnaty or the Pfizer-BioNTech Vaccine." *Johnson*, 567 F. Supp. 3d at 1247; *see also id.* at 1251 ("Plaintiffs have shown no scientific, biological, or formulaic difference between the actual drug in the vial of the Pfizer-BioNTech Vaccine and the one in the vial of the Comirnaty vaccine."); *id.* at 1255 ("The Pfizer-BioNTech Vaccine and Comirnaty are identical in all material respects."); *Legaretta v. Macias*, 603 F. Supp. 3d 1050, 1060 (D.N.M. 2022) ("The Pfizer COVID-19 vaccine has been

[7] "Thus, the FDA stated that it continued its EUA for the Pfizer-BioNTech Vaccine after approving Comirnaty because there was a backlog of labeled and branded Pfizer-BioNTech Vaccine, there was not enough branded and labeled Comirnaty vaccine, the two vaccines have the same formulations and can be used interchangeably, and there are some uses for which Comirnaty was not approved." *Johnson*, 567 F. Supp. 3d at 1240-41.

fully approved by the FDA, and thus is not 'an experimental drug unlicensed for its present use.'") (quoting *Doe v. Rumsfeld*, 297 F. Supp. 2d 119, 123 (D.D.C. 2003)); *Valdez v. Grisham*, 559 F. Supp. 3d 1161, 1171 (D.N.M. 2021) (challenges under EUA statute "are not applicable to the administration of the Pfizer vaccine to individuals 16 years of age and older" following approval of Comirnaty); *Curtis*, 2023 WL 8828753, at *2 (contention that Pfizer-BioNTech vaccine was still "experimental" is "belied by the FDA's approval of Comirnaty" and CDC guidance that "[t]here has been **no change** in the formulation of the vaccine since the name change") (emphasis in original). Thus, the district court correctly recognized that Plaintiffs could have complied with Shriners Children's policy by receiving the Pfizer-BioNTech vaccine following FDA approval.

Plaintiffs' argument regarding a labeling distinction between the EUA vaccine and Comirnaty is also undercut by Dr. Marks' declaration, which Plaintiffs submitted in opposing Shriners Children's motion to dismiss. SER-004-56. Dr. Marks noted the "legal distinctions"—including labeling and manufacturing—for EUA and BLA-approved vaccines. SER-008. But Dr. Marks added that the FDA in approving Comirnaty was "exercising its enforcement discretion with respect to certain labeling requirements" for the existing EUA-labeled vaccine. SER-009. The FDA "consider[ed] these lots to be manufactured in compliance with the BLA and ***they are not subject to the EUA requirements when used for the approved***

indication" for individuals 16 and older. SER-009-10 (emphasis added). Plaintiffs did not submit these pages from Dr. Marks' declaration as part of the record on appeal. But the declaration supports that the FDA declined to enforce labeling requirements for Pfizer-BioNTech's EUA vaccine and Comirnaty, and that the district court was correct to treat the two vaccines as functionally equivalent in considering Plaintiffs' claims. *See also Curtis*, 2024 WL 248719, at *4 ("[A] difference in labeling does not change the outcome of this case."). Plaintiffs were not required to receive any "experimental" or "investigational" vaccine to comply with Shriners Children's policy and their claims fail on this basis.

2. Plaintiffs Do Not Explain Their Claim that the District Court Declined to Consider Their Complaint "As a Whole."

Plaintiffs' second challenge on appeal—that the district court supposedly erred "when it declined to acknowledge Appellants' Complaint as a whole and parsed it piece by piece to determine whether each allegation, in isolation from the asserted facts, was plausible," Op. Br. at 5—is insufficiently described to be properly considered. *See United States v. Kimble*, 107 F.3d 712, 715 n.2 (9th Cir. 1997) (argument "not coherently developed" in brief is deemed "abandoned"); *Acosta-Huerta v. Estelle*, 7 F.3d 139, 144 (9th Cir. 1992) ("issues raised in a brief which are not supported by argument are deemed abandoned"). To the extent Plaintiffs claim error based on the contention that they were required to receive a

EUA vaccine to comply with Shriners Children's policy, Plaintiffs' argument fails given the FDA's approval of Comirnaty as discussed. *See supra* Section VII.B.1.

Alternatively, to the extent Plaintiffs claim error based on Shriners Children's administration of a public vaccination program, Op. Br. at 22-24, the district court correctly recognized that "whether [Shriners Children's] lawfully administered vaccines to the public is attenuated from the specific conduct at issue, *i.e.*, whether Plaintiffs were illegally terminated for refusing a vaccination." 1-ER-0040; *see also supra* Section VII.A.1. Shriners Children's did not require employees to receive a COVID vaccine exclusively from its Spokane hospital to comply with its policy—rather, employees could obtain the vaccine from "a primary care provider, another health facility or other vaccination service[] available in the community" as well. 3-ER-0602. *See also Curtis*, 2024 WL 248719, at *5, 8 ("The Plaintiffs frequently conflate PeaceHealth's obligations as an entity that administers vaccines with PeaceHealth's actions as an employer" and "[T]here is no logical connection between PeaceHealth's employment decisions and its agreement to be bound by requirements in the Provider Agreement" as a COVID vaccine administrator.).

Plaintiffs additionally do not allege that Shriners Children's specifically violated any of the CDC Provider Agreement requirements in administering its vaccination program, such as not charging vaccine recipients, following storage

and handling requirements, reporting adverse events, or providing record cards to recipients. 3-ER-0560-561. Indeed, Plaintiffs do not claim that they received a COVID vaccine from Shriners Children's or anyone else. *See Pearson*, 2024 WL 3022397, at *4 ("As the plaintiffs were not required to receive, and in fact did not receive, the vaccine from Shriners, Shriners' EUA obligations under the Provider Agreement were never triggered."). There are no grounds for concluding the district court erred and "declined to acknowledge" Plaintiffs' Complaint "as a whole."

3. The U.S. Supreme Court Declined to Review Dismissal of a COVID Vaccination Challenge on the Same Constitutional Grounds.

Dismissal of Plaintiffs' claims is also appropriate in light of the Third Circuit's decision earlier this year in *Children's Health Defense, Inc. v. Rutgers*, 93 F.4th 66 (3d Cir. 2024), affirming dismissal of a challenge to Rutgers' COVID vaccination requirement for students on the same constitutional grounds that Plaintiffs assert here. The U.S. Supreme Court subsequently denied Children's Health Defense's petition for a writ of certiorari. *See* 2024 WL 3089572 (U.S. June 24, 2024).

The Third Circuit considered Rutgers' vaccination policy, which was announced in April 2021 (months before FDA approval of Comirnaty) to be effective for the following school year. 93 F.4th at 72. In particular, the Third

Circuit concluded that students "were not deprived of the right 'to accept or refuse' the vaccine" in supposed violation of the EUA statute (as all but one student plaintiff declined to receive a vaccine). *Id.* at 76. While the choice to receive a COVID vaccine "may have been difficult," the Third Circuit recognized that "there is no unqualified right to decide whether to 'accept or refuse' an EUA product without consequence." *Id.* The same is especially true with Shriners Children's policy, when Plaintiffs were not even required to receive an EUA vaccine given FDA approval of Comirnaty.

The Third Circuit rejected plaintiffs' substantive due process, equal protection, and unconditional conditions claims, concluding that "[a]s federal courts have uniformly held, there is no fundamental right to refuse vaccination" and the U.S. Supreme Court's decision in *Jacobson v. Massachusetts*, 197 U.S. 11 (1905), "conclusively demonstrates that there is no such right." *Rutgers*, 93 F.4th at 78; *see also id.* at 81 ("In short, there is no fundamental right to refuse vaccination, nor any unconstitutional condition implicated here."). The Third Circuit accordingly applied rational basis review to Rutgers' vaccination policy, concluding that "[c]urbing the spread of COVID-19 is 'unquestionably a compelling interest,'" and Rutgers' policy was "grounded in the recommendations of experts, including at the CDC and FDA," who had authorized emergency use of the vaccines. *Id.* at 81 (quoting *Roman Catholic Diocese of Brooklyn v. Cuomo*,

592 U.S. 14, 18 (2020)). With Rutgers "statutorily permitted to impose the requirements it did," and plaintiffs failing to plead "a constitutional violation on rational basis review," the Third Circuit affirmed dismissal. *Id.* at 88.

Children's Health Defense asked the Supreme Court to consider whether an individual has a "fundamental right" to refuse what they characterized as an "experimental vaccine" without "forfeiting their education, losing their job, or being banned from places of public accommodation." Petition for Writ of Certiorari at 27, *Children's Health Def. v. Rutgers*, Case No. 23-1222, 2024 WL 2325790 (May 15, 2024). Children's Health Defense also challenged whether a "heightened standard of review" beyond rational basis or a "balancing test" applied to protect their "liberty interests" against "mandates of experimental medical products," *id.* at 32, again raising due process, equal protection, and unconstitutional conditions challenges to Rutgers' policy. *See also id.* at 25 ("Whether Americans have a fundamental right to informed consent and to freely and voluntarily refuse unwanted experimental medical treatment should be settled by this Court[.]").

The Supreme Court denied certiorari. This Court should follow the Third Circuit in rejecting Plaintiffs' constitutional challenges to Shriners Children's vaccination policy, which has an even more compelling basis than Rutgers' policy

in attempting to protect pediatric patients (many ineligible at the time to receive a vaccine) from the spread of COVID.

4. Plaintiffs' Claims Fail Individually As Well and Should Be Dismissed.

As the Shriners Children's Defendants discussed in their motion to dismiss briefing, 2-ER-0251-278, 3-ER-0400-454, Plaintiffs' claims fail individually as well.

Section 1983 – Subjected to Investigational Drug Use (Count 1).

Plaintiffs cannot overcome the threshold issues that (1) they do not claim to have ever received a COVID vaccine and (2) Pfizer-BioNTech's vaccine was FDA approved and not "investigational" at the time of Shriners Children's policy. *See supra* Section VII.B.1 Federal district courts further have recognized that employers instituting COVID vaccination requirements are not "subjecting" employees to forced medical research or experimentation. *See Bridges v. Houston Methodist Hosp.*, 543 F. Supp. 3d 525, 527 (S.D. Tex. 2021) ("The hospital's employees are not participants in a human trial. They are licensed doctors, nurses, medical technicians, and staff members. The hospital has not applied to test the COVID-19 vaccines on its employees, it has not been approved by an institutional review board, and it has not been certified to proceed with clinical trials."); *Johnson*, 567 F. Supp. 3d at 1248 ("Plaintiffs here do not contend that they are being forced to be part of the *clinical trials* for the Pfizer-BioNTech Vaccine or

that they are being forcibly injected while being physically held against their will.") (emphasis in original). As here, Plaintiffs have not been subjected to medical research—indeed, none claims to have received a COVID vaccine.

The EUA statute that Plaintiffs reference, 21 U.S.C. § 360bbb-3, also contains no private right of action in support of this claim. *See Kotek*, 2024 WL 747022, at *2 (prohibiting Section 1983 claims to recover damages for alleged violation of § 360bbb-3); *see also Standley ex rel. B.M.S. v. Nelms*, 2024 WL 1793667, at *3 (9th Cir. Apr. 25, 2024) (same); *Conner v. Kelly*, 2024 WL 3177782, at *3 (5th Cir. June 26, 2024) (§ 360bbb-3 "governs the Food and Drug Administration, not private companies, and merely relates to emergency authorization for medical products"); *Svendsen v. Pritzker*, 91 F.4th 876, 877 (7th Cir. 2024) ("Section 360bbb-3 does not provide a private right of action[.]"); *Bird v. Martinez-Ellis*, 2022 WL 17973581, at *5 (10th Cir. Dec. 28, 2022) ("'Private parties may not bring enforcement suits' under the FDCA.") (citation omitted); *Harriss v. City of Carbondale*, 2024 WL 2292875, at *3 (S.D. Ill. May 21, 2024) ("Courts have consistently held that the EUA provides no private right of action because it is a subpart of the [Federal Food, Drug, and Cosmetic Act] subject to enforcement 'by and in the name of the United States.'") (quoting 21 U.S.C. §

337(a)). Plaintiffs accordingly cannot pursue their Section 1983 claim under the EUA statute and dismissal is warranted.[8]

Equal Protection, Due Process, and Unconstitutional Conditions Claims (Counts 2, 3, 5). The Court should follow the Third Circuit in *Rutgers* and numerous courts nationally in concluding that a COVID vaccination policy does not implicate fundamental rights, nor any suspect classification of individuals, and that Shriners Children's policy satisfied rational basis review. This is consistent with this Court's existing precedent as well. *See Kheriaty*, 2022 WL 17175070, at *1-2 (affirming dismissal of professor's constitutional challenge to University of California COVID vaccination policy; "Kheriaty fails to offer any appropriate historical example to establish a 'fundamental right' to be free from a vaccine mandate at a workplace" and "[b]ecause he has not asserted a fundamental right, rational basis should apply.") (citing *Jacobson*, 197 U.S. at 12-13); *see also Rutgers*, 93 F.4th at 78 (federal courts have "uniformly held" that there is "no fundamental right to refuse vaccination"); *We The Patriots*, 17 F.4th at 293 ("Both

[8] The additional federal statutes, regulations, reports, and international treaties that Plaintiffs cite in support of their claim (45 C.F.R. § 46, 10 U.S.C. § 980, the Belmont Report, the Federal Wide Assurance, and the ICCPR) are either inapplicable or also do not provide for a private right of action. *Curtis*, 2023 WL 8828753, at *5; *see also Sweeney v. Univ. of Colo. Hosp. Auth.*, 2024 WL 3713835, at *6, 9-11 (D. Colo. July 12, 2024) (granting dismissal of similar claims brought by same plaintiffs' counsel, concluding "Plaintiffs fail to show that any of the federal statutes, regulations, reports, or treaties apply in this case and/or that these sources create a private right enforceable through § 1983.").

this Court and the Supreme Court have consistently recognized that the Constitution embodies no fundamental right that in and of itself would render vaccine requirements imposed in the public interest, in the face of a public health emergency, unconstitutional."); *Norris v. Stanley*, 73 F.4th 431, 435-37 (6th Cir. 2023) (rational basis standard correctly applied to challenge to university's employee COVID vaccination requirement; "Given that [Michigan State University's] policy satisfies rational basis review, no employee's rights are violated, and thus the policy is not an unconstitutional condition on plaintiffs' employment."); *Cagle v. Weill Cornell Med.*, 2024 WL 3520469, at *4 n.2 (S.D.N.Y. July 24, 2024) (concluding plaintiff nurse "may have a right to refuse the vaccine, but she has no federally-protected right to continue working as a patient-facing nurse at Cornell while unvaccinated."); *Williams v. Brown*, 2023 WL 6379771, at *4 (D. Or. Sept. 30, 2023) ("[C]ourts have routinely rejected the argument that vaccine mandates will trigger heightened scrutiny under the Equal Protection Clause and have instead applied rational basis review"); *Lumley v. Town of Knightdale*, 2024 WL 3678348, at *6 (E.D.N.C. Aug. 6, 2024) ("[C]ourts across the country have recognized that discrimination based on vaccination status does not target a suspect class, and is subject to rational basis review.") (collecting cases).

The Court's analysis should be identical. Shriners Children's instituted its vaccination policy to protect its pediatric patients, their families, hospital employees, and others from the spread of COVID, and accordingly the policy satisfies rational basis review. *See We The Patriots*, 17 F.4th at 290 ("Faced with an especially contagious variant of the virus in the midst of a pandemic … the State decided as an emergency measure to require vaccination for all employees at healthcare facilities who might become infected and expose others to the virus[.] … This was a reasonable exercise of the State's power to enact rules to protect the public health."); *Clark*, 2023 WL 2787325, at *6-7 (applying rational basis review and affirming dismissal of nurse's challenge to health system's employee COVID vaccination requirement; nurse failed to "dispute that preserving public health by slowing the spread of disease is a legitimate public interest, nor does she dispute that preserving the health of [hospital] employees and patients is a legitimate public interest"); *Curtis*, 2023 WL 8828753, at *4 (recognizing rational basis for Governor Inslee's proclamation at a time of a "rise in COVID-19 cases, hospitalizations and deaths" due to Delta variant); *Sweeney*, 2024 WL 3713835, at *12 ("Requiring those who work in a hospital or healthcare facility to take

preventative measures against the spread of COVID-19 is easily rationally related to that interest."). Plaintiffs' constitutional claims therefore should be dismissed.[9]

***Carvalho* Provides No Basis for Reversal.** The distinction that a panel of this Court cited in a challenge to Los Angeles Unified School District's employee COVID vaccination requirement is inapplicable to this case. *See Health Freedom Def. Fund, Inc. v. Carvalho*, --- F.4th ----, 2024 WL 2873372 (9th Cir. June 7, 2024). *Carvalho* was decided before the U.S. Supreme Court denied certiorari in the *Rutgers* case and is the subject of a pending petition for rehearing *en banc*. *See Health Freedom Def. Fund v. Reilly*, Case No. 22-55908, Petition for Rehearing *En Banc* (Dkt. 56) (filed June 21, 2024).

The majority in *Carvalho* concluded that *Jacobson* in upholding a community smallpox vaccination requirement was somehow distinguishable from LAUSD's COVID vaccination policy because "*Jacobson* held that mandatory vaccinations were rationally related to 'preventing the spread' of smallpox." 2024 WL 2873372, at *7. The majority distinguished a supposed "traditional" vaccine with the COVID vaccine, which plaintiffs alleged "does not effectively prevent

[9] Regarding Plaintiffs' unconstitutional conditions claim, a federal district court dismissed a similar claim with respect to an at-will nurse challenging her employer's vaccination policy. *Antunes v. Rector & Visitors of Univ. of Va.*, 627 F. Supp. 3d. 553, 566 (W.D. Va. 2022). Also, to the extent Plaintiffs allege a procedural due process claim, Plaintiffs "fail to point to procedural protections that they were due but did not receive." *Curtis*, 2024 WL 248719, at *6.

spread, but only mitigates symptoms for the recipient." *Id.* The majority concluded that *Jacobson*'s "public health rationale" did not extend to what it considered "forced medical treatment"—the COVID vaccine—"for the recipient's benefit." *Id.*

The majority's ruling relies on a distinction not found in *Jacobson*. *See* 197 U.S. at 26, 35 (recognizing "a community has the right to protect itself against an epidemic of disease which threatens the safety of its members" and that "vaccination, as a means of protecting a community against [a disease] finds strong support in the experience of this and other countries."). This distinction also has not been cited by the numerous courts nationally that in recent years have considered *Jacobson* and COVID vaccination challenges. Further, whether some individuals may have disputed the effectiveness of the smallpox vaccine in *Jacobson* (as did the Plaintiffs in *Carvalho*) was no issue for the Supreme Court in upholding a public vaccination requirement. *Id.* at 35 ("The fact that the belief is not universal is not controlling, for there is scarcely any belief that is accepted by everyone.").

In this case, Plaintiffs did not allege in their Complaint that the COVID vaccine did not prevent the spread of infection. 3-ER-0455-558; *see also* 3-ER-0568 (Plaintiffs submitted FDA authorization letter reporting that Pfizer-BioNTech vaccine was "95% effective … in preventing COVID-19 occurring at least 7 days

after the second dose," based on data from over 36,000 trial participants). To the extent that LAUSD cited minimal evidence regarding the efficacy of the COVID vaccines, 2024 WL 2873372, at *8 ("LAUSD only provides a CDC publication that says 'COVID-19 vaccines are safe and effective.'"), Shriners Children's referenced such evidence in moving for dismissal in this case. *See* ER-0412 (FDA reported in approving Comirnaty that "the vaccine was 91 percent effective in preventing COVID."); *see also* SER-010 (Marks Declaration noting that Pfizer-BioNTech vaccine was between 95 and 100 percent effective for the avoidance of severe infection). There is no basis for concluding that the Pfizer-BioNTech vaccine did not prevent COVID or that *Jacobson* is inapplicable to Plaintiffs' constitutional claims.

Spending Clause (Count 4). The Supreme Court has held that Section 1983 challenges to laws that Congress enacts via its spending power should be evaluated no differently than other statutes. *See Health & Hosp. Corp. of Marion Cnty. v. Talevski*, 599 U.S. 166, 183 (2023) (holding that while federal statutes have potential to create Section 1983-enforceable rights, they "do not do so as a matter of course."). In this case, the statutes that Plaintiffs cite (in particular the EUA statute) do not provide for a private right of action enforceable through a Section 1983 claim, *see Kotek*, 2024 WL 747022, at *2, or Plaintiffs cite

regulations, reports, and treaties that are not federal statutes at all and therefore not actionable under Section 1983.

PREP Act (Count 6). Plaintiffs do not allege that they suffered "death or serious physical injury" proximately caused by "willful misconduct" in the administration of a covered countermeasure such as a COVID vaccine, as required to state a claim under the PREP Act. 42 U.S.C. § 247d-6d(d)(1). Nor could they, when they do not allege to have received a COVID vaccine at all. Regardless, this Court has held that "the PREP Act expressly forecloses § 1983 actions for covered claims." *Maney v. Brown*, 91 F.4th 1296, 1303 & n.3 (9th Cir. 2024); *see also id.* at 1303 ("Congress used terms [in PREP Act] that plainly and unambiguously define a broad scope of immunity that includes claims brought under § 1983."); *Sweeney*, 2024 WL 3713835, at *8 ("[T]he Court agrees with Defendants that the PREP Act does not create an individual right enforceable under § 1983."). Plaintiffs' PREP Act claim accordingly should be dismissed.[10]

Breach of Contract, Common Law Employment Torts, Outrage (Counts 7-9). Plaintiffs do not meaningfully challenge the district court's dismissal of their

[10] The Fifth Circuit additionally recently held in a case brought by the same plaintiffs' counsel as here that no private right of action exists under *either* the PREP Act or EUA statute. *Hughes v. Terminix Pest Control, Inc.*, 2024 WL 3440465, at *1 (5th Cir. July 17, 2024) ("References to voluntariness in the PREP Act and the Emergency Use Authority provision, 21 U.S.C. § 360bbb-3, do not vest employees with a right against private employers.").

state law claims. Op. Br. at 47. Plaintiffs claim they were "unlawfully terminated" for exercising a "legal right or privilege" in refusing to comply with Shriners Children's policy. *Id.* But as discussed, Plaintiffs could have received an FDA-approved vaccine to comply with the policy and courts have widely recognized that no fundamental right to refuse vaccination exists. *See supra* Section VII.B.1. The Court should affirm dismissal of Plaintiffs' state law claims.

Implied Right of Action/21 U.S.C. § 360bbb-3 (Count 10). As with Count 1, this Court and courts nationally have consistently concluded that 21 U.S.C. § 360bbb-3 provides for no private right of action. *See Kotek*, 2024 WL 747022, at *2; *Svendsen*, 91 F.4th at 877; *Conner*, 2024 WL 3177782, at *3; *Bird*, 2022 WL 17973581, at *5; *Hughes*, 2024 WL 3440465, at *1; *Sweeney*, 2024 WL 3713835, at *17. The Court accordingly should dismiss this claim as well.[11]

[11] Plaintiffs do not meaningfully challenge the district court's denial of their motion for leave to amend. Op. Br. at 47. This motion was procedurally deficient with respect to the Shriners Children's Defendants, as the Court already had dismissed Plaintiffs' claims against them with prejudice. *See Dianese v. Pennsylvania*, 2001 WL 876919, at *2 (E.D. Pa. Apr. 17, 2001) ("Allowing plaintiffs to amend now the complaint to cure the failures that led to the dismissal of the case [with prejudice] would undermine the finality of this Court's order and prejudice the defendants."); *Roque v. City of Redlands*, 79 F.R.D. 433, 436 (C.D. Cal. 1978) ("Thus, since the Court has not altered, vacated, or otherwise set aside its prior order of dismissal with prejudice, the Court lacks power to consider the rule 15(a) motion.").

VIII. CONCLUSION

For the foregoing reasons, the Shriners Children's Defendants ask the Court to affirm the district court's dismissal of Plaintiffs' claims.

RESPECTFULLY SUBMITTED this 14th day of August, 2024.

DAVIS WRIGHT TREMAINE LLP
Attorneys for Respondents – Defendants Shriners Hospitals for Children, Shriners Hospitals for Children – Spokane, Beverly Bokovitz, Frances Farley, Jerry Gantt, John McCabe, Phillip Grady, and Peter Brewer

By */s/ Ross Siler*
Robert Maguire, WSBA #29909
Ross Siler, WSBA #46486
920 Fifth Avenue, Suite 3300
Seattle, WA 98104-1610
Phone: (206) 622-3150
Email: robmaguire@dwt.com
Email: ross.siler@dwt.com

Sarah Ames Benedict, WSBA #51052
Meagan Himes, WSBA #60030
560 SW 10th Avenue, Suite 700
Portland, OR 97205
Phone: (503) 241-2300
Email: sarahbenedict@dwt.com
Email: meaganhimes@dwt.com

UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

Form 17. Statement of Related Cases Pursuant to Circuit Rule 28-2.6

9th Cir. Case Number(s): 24-1949

The undersigned attorney or self-represented party states the following:

[ ] I am unaware of any related cases currently pending in this court.

[ ] I am unaware of any related cases currently pending in this court other than the case(s) identified in the initial brief(s) filed by the other party or parties.

[X] I am aware of one or more related cases currently pending in this court. The case number and name of each related case and its relationship to this case are:

> *Curtis et al. v. Inslee et al.*, Case No. 24-1869, D.C. No. 3:23-cv-05741-RJB (W.D. Wash.). The related case is an appeal from the United States District Court for the Western District of Washington's orders granting dismissal of Plaintiffs' claims against Washington Governor Jay Inslee and defendants for PeaceHealth.

Signature: */s/ Ross Siler* **Date:** August 14, 2024

UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

Form 8. Certificate of Compliance for Briefs

9th Cir. Case Number(s): 24-1949

I am the attorney or self-represented party.

This brief contains 10,528 words, including 0 words manually counted in any visual images, and excluding the items exempted by FRAP 32(f). The brief's type size and typeface comply with FRAP 32(a)(5) and (6).

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[X] complies with the word limit of Cir. R. 32-1.

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Signature: */s/ Ross Siler* **Date:** August 14, 2024

UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

Form 15. Certificate of Service for Electronic Filing

9th Cir. Case Number(s): 24-1949

I hereby certify that I electronically filed the foregoing/attached document(s) on this date with the Clerk of the Court for the United States Court of Appeals for the Ninth Circuit using the Appellate Electronic Filing system.

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